



Tataskweyak Cree Nation

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May 13, 2025

The Honourable Mike Moyes
Minister of Environment and Climate Change
Room 344 Legislative Building
450 Broadway
Winnipeg, MB R3C 0V8

Via email: minecc@manitoba.ca

Dear Minister Moyes:

RE: Urgent Review of Churchill River Diversion

I am Chief of Tataskweyak Cree Nation. I write to urgently request that you initiate a Clean Environment Commission (CEC) review process to investigate and assess the impacts of Manitoba Hydro's Churchill River Diversion (CRD) through a transparent, public process.

The purpose of this review would be to develop evidence-based recommendations to inform the *Water Power Act* licensing decision that your government must make before September 1, 2026 respecting the CRD.

As noted by Manitoba's CEC, projects like the CRD "were planned and built at a time when the law did not require the same degree of public consultation and consideration of environmental matters as is required today."¹ To date, the CRD has never been subjected to an environmental impact assessment. Just as importantly, the impacts of the CRD on our Nation's rights and interests have never been fully considered or addressed.

But the CRD continues to have a devastating effect on the lands, waters, animals, birds, fish and people within Tataskweyak's traditional territory. My Nation holds a deep concern for the lands impacted by the CRD as we are and always have been the traditional stewards of these lands and waters. The CRD has jeopardized the health and well-being

¹ Clean Environment Commission, "Lake Winnipeg Regulation Report" (2015) at recommendation 9.2, pg 133, online: https://www.cecmanitoba.ca/hearings/lake-winnipeg-regulation-mb-hydro/doc/FinalReport/LWR_WEB.pdf.

of my Nation and the exercise of our inherent and Treaty rights, including our right to fish for sturgeon on the lower Churchill River.

A CEC review process is necessary to ensure that your government's *Water Power Act* licensing decision is grounded in evidence, informed by our experiences, and protects our rights.

Ten years ago, Manitoba's CEC recommended the CRD relicensing application "be subject to a full environmental assessment" incorporating Indigenous Knowledge and that the Manitoba government "hold public hearings to review" the assessment.² To date, your government has offered no response to that recommendation.

Background

The Churchill River system has provided food, navigation, and harvesting opportunities for our people since time immemorial.

In 1973, Manitoba Hydro began construction on the CRD. The CRD is a system of channels, dams and control structures that diverts water out of the Churchill River system into the Nelson River to increase the production of Manitoba Hydro's hydroelectric generating stations. The CRD can divert up to 98.5% of the Churchill River's flow into the Nelson River.

Manitoba Hydro received an interim *Water Power Act* license to operate the CRD in 1976 and a final licence in 2021.³ Its licence to operate the CRD will expire on September 1, 2026.⁴ Manitoba Hydro has applied for a 50-year renewal of its license, but your government has not yet made a decision or issued a license renewal or extension.

Four years ago, the former Conservative government promised to modernize *The Environment Act* and *The Water Power Act* "to incorporate current leading practices" and to provide guidelines for the licence renewal project for the CRD.⁵ To date, that promise has not been kept.

Your government has not given any indication of the process that will be used to consider Manitoba Hydro's application. We have no assurance that my Nation's experience or the documented impacts of the CRD on the lower Churchill River will be taken into account to inform the licensing conditions. We also have no assurance that Manitoba will take the

² Clean Environment Commission, "Lake Winnipeg Regulation Report" (2015) at xiii and 144, online: https://www.cecmanitoba.ca/hearings/lake-winnipeg-regulation-mb-hydro/doc/FinalReport/LWR_WEB.pdf, see Recommendations 10.7 and 10.8.

³ Manitoba Hydro did not receive a final licence until May 2021. That licence expires in 2026. Government of Manitoba, "Manitoba Issues Final Licenses for Churchill River Diversion, Lake Winnipeg Regulation and Jenpeg Generating Station" (May 13, 2021) online: <https://news.gov.mb.ca/news/index.html?item=51281>

⁴ CCSM cW60

⁵ Government of Manitoba, "Manitoba Issues Final Licenses for Churchill River Diversion, Lake Winnipeg Regulation and Jenpeg Generating Station" (May 13, 2021) online: <https://news.gov.mb.ca/news/index.html?item=51281>

steps needed to fully assess the impacts of the CRD, including the impacts on our Nation's inherent and Treaty rights.

CRD Impacts: Lake sturgeon populations decimated; most impacts remain undocumented

Tataskweyak's Elders have been warning that the CRD is decimating sturgeon and sturgeon populations since the CRD began operations.

The Tataskweyak Environmental Monitoring Agency has studied and commissioned independent research that has clearly documented the CRD's negative impacts on sturgeon populations.

Our research shows that drastic water level changes caused by the CRD have decimated our sturgeon population by destroying and/or preventing access to essential spawning and over-wintering habitat. The studies are an important first step, but significant work still needs to be done to fully assess the impacts of the CRD on Tataskweyak's rights and interests, and Tataskweyak is unable to complete this work without proper funding.

My Nation's Elders, traditional knowledge holders and land users also know that the CRD has harmed populations of other species as well, but to date we have not had the resources to pursue this research.

An Essential CEC Review Process

It would be unacceptable for your government to authorize Manitoba Hydro to continue operating the CRD without understanding its effects. A public review process would fill these gaps in knowledge and create an opportunity for collaborative input on the future of the CRD, the Churchill River, and our sturgeon.

For example, our preliminary research has identified minimum flow levels in the lower Churchill River that would mitigate some of the CRD's harms to sturgeon. If incorporated into new CRD licensing conditions, our sturgeon may be allowed to thrive.

We urge you to exercise your authority under section 6(5)(a)-(c) of *The Environment Act*⁶ to direct the CEC to investigate and hold a public hearing grounded in First Nation knowledge and traditional practices to develop recommendations for the future operation of the CRD. This must take place on a time-sensitive basis.

The ongoing operation of the CRD has had a catastrophic effect on the exercise of Tataskweyak's rights. Recognizing the profound implications of future licensing decisions on Tataskweyak's rights and considering Tataskweyak's experience and expertise developed over generations on the Churchill River, we also urge you to include us in the development and design of the review process. The culture and traditions of our Nation's

⁶ CCSM c E125.

people should not be dictated by industry or government but instead be informed and guided by the spirit of our Nation and our hopes for the future. This will ensure that the review process is consistent with best practice and your legal obligations.

As the traditional stewards of the land, we must decide our own path going forward, and we believe strongly in the importance of a CEC review. We also believe that a licensing decision made without such a review and in the absence of evidence and input from Tataskweyak would be contrary to the spirit and intent of our Treaty relationship and the principles of reconciliation.

Conclusion

Thank you for considering my request for you to urgently initiate a CEC review of the CRD's effects on the lower Churchill River.

I look forward to receiving a response from you in a timely manner.

Ekosi,

A handwritten signature in dark ink, appearing to read 'Doreen Spence', written in a cursive style.

Chief Doreen Spence
Tataskweyak Cree Nation

cc: Deputy Minister of Environment and Climate Change (dmecc@manitoba.ca)
Aimee Craft, Chairperson, Clean Environment Commission